

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF STEPANOV AND OTHERS v. RUSSIA

(Applications nos. 16539/23 and 15 others –
see appended list)

JUDGMENT

STRASBOURG

16 May 2024

This judgment is final but it may be subject to editorial revision.



In the case of Stepanov and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 18 April 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 16 May 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	María Elósegui President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	16539/23 01/04/2023	**Vadim Denisovich STEPANOV** 1997	Filatchev Oleg Vladimirovich Moscow	Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 01/12/2022		3,500
2.	16540/23 03/04/2023	**Tatyana Borisovna KOZLOVA** 1974		Anti-war protest Moscow 27/02/2022 Anti-war protest Moscow 13/03/2022	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 15,000 fine of RUB 10,000	Moscow City Court 09/12/2022 Moscow City Court 09/03/2023	Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2022 and on 13/03/2022 for compiling an offence report	4,000
3.	16797/23 12/04/2023	**Makar Sergeyevich VORFOLOMEYEV** 1996		Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/12/2022	Art. 5 (1) - unlawful detention - escorting to the police station from 24/02/2022 to 25/02/2022 for compiling an offence report	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	16856/23 03/04/2023	**Irina Alekseyevna SKVORTSOVA** 1967		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 07/12/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000
5.	17358/23 04/04/2023	**Anastasiya Nikolayevna KRASNITSKAYA** 1998		Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 05/12/2022	Art. 5 (1) - unlawful detention - escorting to the police station from 27/02/2022 to 28/02/2022 for compiling an offence report.	4,000
6.	17393/23 11/04/2023	**Anton Ivanovich LENOK** 1988	Aksenova Darya Dmitriyevna Kolomna	Anti-war protest Moscow 02/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 03/02/2023	Art. 5 (1) - unlawful detention - escorting to the police station on 02/03/2022 for compiling an offence report	4,000
7.	17628/23 06/04/2023	**Nelya Anatolyevna BRAYNINA** 1948		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 07/12/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000
8.	18183/23 05/04/2023	**Vladlena Vladimirovna REBRAKOVA** 1994		Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 07/12/2022		3,500
9.	18487/23 19/04/2023	**Vladimir Aleksandrovich BOLOBOLOV** 1987		Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 19/12/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 24/02/2022 for compiling an offence report	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
10.	21410/23 02/02/2023	**Yuliya Nikolayevna DMITRIYEVA** 1988	Mikhaylova Varvara Dmitriyevna St Petersburg	Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 03/10/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 5.30 p.m. until 9.30 p.m. on 06/03/2022	4,000
11.	21769/23 06/04/2023	**Mariya Dmitriyevna ZHITINA** 1997		Anti-war protest Moscow 07/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 07/12/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 07/03/2022 for compiling an offence report	4,000
12.	23165/23 28/05/2023	**Margarita Alekseyevna SOLOMATINA** 2022		Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 31/01/2023	Art. 5 (1) - unlawful detention - escorting to the police station from 24/02/2022 to 25/02/2022 for compiling an offence report	4,000
13.	23310/23 26/05/2023	**Ratibor Igorevich PODLESNYY** 2003	Bochilo Anna Yevgenyevna Barnaul	Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 17/02/2023	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000
14.	23312/23 26/05/2023	**Anna Anatolyevna ZOBOVA** 1991	Bochilo Anna Yevgenyevna Barnaul	Anti-war protest Moscow 13/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 15/02/2023	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.00 p.m. until 9.00 p.m. on 13/03/2022	4,000
15.	30860/23 20/07/2023	**Tatyana Vyacheslavovna KRUPINA** 1994		Anti-war protest Moscow 02/04/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 23/03/2023	Art. 5 (1) - unlawful detention - escorting to the police station on 02/04/2022 for compiling an offence report.	4,000

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16.	31281/23 14/07/2023	**Aleksey Palovich ZHILTSOV** 2002		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 15/03/2023	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report	4,000

[1] Plus any tax that may be chargeable to the applicants.